



Network Private Limited

To
Bharti Airtel Ltd
Gurgaon

PO No. : -
Date : -

Dear Sir/Madam,
We are pleased to place the following NLD Upgrade order as per the following commercial terms and conditions

S. NO	POP End-A	Installation address-A end	POP end-B	Installation address-B end	BW (Mbps)	ARC
1	As Per Annexure	As Per Annexure	As Per Annexure	As Per Annexure	As Per Annexure	As Per Annexure

- Product:** NLD
- **Contact Person:** Mr. Manoj
 - **E-mail:** Project@fab5network.com
 - **Payment Mode** Monthly In advance
 - **Last Mile:** Fiber
 - **Contact Period:** One Year
 - **CND:**
 - **All orders are interconnect; testing will process after all orders provisioned by Airtel.**
 - **Billing Address:** - Ground Floor, Plot No. 2456 A, Kh No. 82/26, Karala Road Jain Colony New Delhi – 110081.

Terms & Conditions

1. **Payment terms:**
 - a. OTC as 100% in Advance with the Purchase order
 - b. ARC - Monthly advance (MRC). 1st month charges will be paid in advance with the P.O
 - c. The pricing does not include any taxes which will be charged extra at existing prevailing rates.
 - d. All Payments will be made favoring Bharti Airtel Limited
 2. **Validity:** Minimum contract term is 12 months from the date of link delivery.
 3. **Service Delivery:** Standard Implementation Time period is 4 - 6 weeks, subject to clear feasibility. No last mile access shall be given to any ISP customer.
 4. **Circuit Acceptance:** Airtel will conduct the following tests on implemented circuit as per our standard parameters
 - a. NLD / Local Loop – Ping and Packet Loss
 - b. Internet – Ping (up to peering points), Packet Loss, Throughput.
- On successful testing of the above parameters, the circuit will be deemed ready for use & for acceptance by customer

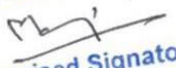
For FAB FIVE NETWORK PVT. LTD.

Authorised Signatory



Network Private Limited

5. **Billing start date:** 48 hours post the handover of link by Airtel to the customer. No separate LOC signoff shall be taken from the customer
6. **Delay in payment terms:** Payment should be cleared by the due date. Any delay in the above will attract late payment charges @ 12% p.a. of the outstanding amount
7. **Barring service on account of payment delay:** Service of all/delayed payment links will be barred if the payment is not received within 15 days post the due date without any obligation or liability of Airtel.
8. **Service Restoration:** In case of disconnection on account of non-payment, reconnection of the same will be undertaken within 15 days from the date of clearance of outstanding dues. In case of any technical constraint from Airtel end, the link restoration timelines shall be extended
9. **Upgrade:** For any upgrade effected to the circuit, the upgraded circuit's contract will also be for the 12month or mutually agreed Fixed Rate Contract period.
10. **Disconnection post completion of minimum contract period:** Customer to log the call with CFM and SR no. will be required. Date of SR will be taken as date of disconnection notice and a notice period of 30 days shall be considered. Customer is liable to pay any charges of remaining period of fixed rate contract, if applicable.
11. **Renewal:** All Contracts will be renewed automatically after completion of 12 month cycle or FRC period with existing terms & conditions unless communicated otherwise.
12. Any change in regulation / tariff from the Telecom Regulatory Authority would be applicable with immediate effect.
13. Bharti Airtel Ltd shall not be responsible for installation, commissioning and maintenance of any equipment or hardware unless supplied by Bharti Airtel Ltd.
14. Standard Force Majeure clauses will be applicable.

For FAB FIVE NETWORK PVT. LTD.

Authorised Signatory

FAB FIVE NETWORK PRIVATE LIMITED

Ground Floor, Plot No. 2456A, Kh. No. 82/16, Karala Road Jain Colony New Delhi - 110081
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